

SENATE BILL 1899

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to higher education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-8-302, is amended by designating the existing language as subsection (a) and adding the following as a new subsection (b):

(b) If the president of an institution governed by the board of regents or a state university board finds that adequate cause exists to terminate a faculty member, including a faculty member with tenure, then the institution may suspend the faculty member without pay during the pendency of any investigation or hearings conducted to determine whether adequate cause for the faculty member's termination exists.

SECTION 2. Tennessee Code Annotated, Section 49-9-209(d)(1), is amended by deleting subdivision (H) and substituting instead the following:

(H)

(i) Have the authority to adopt policies governing the granting and removal of tenure for faculty members; and

(ii) Allow each institution under its jurisdiction to suspend without pay a faculty member, including a tenured faculty member, for whom adequate cause for termination is found to exist by the president of the University of Tennessee system or the chancellor of the respective institution, as applicable, during the pendency of any investigation or hearings conducted to determine whether adequate cause for the faculty member's termination exists;

SECTION 3. Tennessee Code Annotated, Section 49-8-203(a)(1), is amended by deleting subdivision (A) and substituting instead the following:

(A) Subject to this subdivision (a)(1)(A), select and employ the chief executive officers of the institutions and to confirm the appointment of administrative personnel, teachers, and other employees of each state institution and to fix their salaries and terms of office. A chief executive officer selected, on or after July 1, 2026, by the board of regents or a state university board is subject to confirmation by the senate and house of representatives. If either house fails to confirm the selection of a chief executive officer within ninety (90) calendar days after the general assembly next convenes in regular session following their selection by the board, then the officer's employment with the board is terminated on the day following the ninetieth calendar day and the board shall declare a vacancy in the office for the respective institution;

SECTION 4. Tennessee Code Annotated, Section 49-9-209(d)(1), is amended by deleting subdivision (A) and substituting instead the following:

(A) Subject to this subdivision (d)(1)(A), appoint a chief executive officer of the University of Tennessee system, who shall be the president of the University of Tennessee system. The president serves at the pleasure of the board, subject to the terms of any written employment contract approved by the board. A president of the University of Tennessee system appointed, on or after July 1, 2026, by the board of trustees is subject to confirmation by the senate and house of representatives. If either house fails to confirm the appointment of the president within ninety (90) calendar days after the general assembly next convenes in regular session following the appointment, then the president's employment with the board is terminated on the day following the ninetieth calendar day and the board shall declare a vacancy in the office of the president of the University of Tennessee system;

SECTION 5. For purposes of adopting policies, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it, and applies to acts occurring on or after that date.